FACT SHEET

Poisons Amendment (Interstate Prescriptions) Bill 2025

The Bill seeks to amend the *Poisons Act 1971* to remove restrictions that prevent Tasmanian pharmacists from dispensing certain prescriptions that have been issued interstate, to ensure appropriate safeguards are applied, and to clarify its intended jurisdiction.

Specifically, it:

- Defines “interstate prescriber” and creates them as a class of authorised health professional, ensuring they have the relevant powers to prescribe declared restricted substances and narcotic substances under Tasmanian law and are bound by requirements and safeguards;
- Removes provisions requiring authorised health professionals, dentists, nurse practitioners, endorsed midwives and medical practitioners to be in Tasmania in order to prescribe declared restricted substances or narcotic substances;
- Removes provisions which meant declared restricted substances or narcotic substances dispensed interstate could only be brought into Tasmania physically by the person to whom they were prescribed or a family member, on their person or in their luggage, or could only be legally possessed if prescribed and dispensed in Tasmania or brought in as described;
- Requires interstate prescribers to check the Tasmanian monitored medicines database, TasScript, prior to prescribing a monitored medicine to a Tasmanian;
- Requires Tasmanian pharmacists to check an interstate monitored medicines database before dispensing a monitored medicine to a person from interstate;
- Clarifies the intent for the Act to apply to interstate prescribers in relation to the writing and issuing of prescriptions for narcotic substances and restricted substances in so far as they relate to the supply of such substances in Tasmania or are issued to residents of Tasmania, including operating outside the territorial limits of Tasmania in relation to these matters; and
- Creates a head of power to make regulations in relation to issuing and dispensing scripts by interstate prescribers.